

Objections and Appeals

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An objection is a formal communication from a taxpayer showing dissatisfaction of an assessment raised by URA.

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1. When does a tax payer raise an objection?

An objection can be raised by any registered taxpayer who is dissatisfied with the assessment raised by any URA official. An objection ought to be raised 45 days after receiving the notice of assessment.

2. Where does one submit an objection to?

One should submit their objection through the URA online portal or any URA office accompanied by all supporting evidence and a letter of objection to the assessment containing the grounds on which one is raising the objection.

3. Does ADR apply to the objection procedure?

A taxpayer dissatisfied with an objection decision may apply to the Commissioner to resolve the dispute using alternative dispute resolution procedures that may be prescribed by the Minister through regulations.

4. When does a tax payer appeal?

A taxpayer dissatisfied with the decision of the Commissioner General may, appeal the decision to the Tax Appeals Tribunal. The taxpayer intending to lodge a review of a tax decision in TAT shall do so within 30 days after being served with the notice of objection decision, ***section 16 Tax Appeals Tribunals Act Cap 345***

NOTE: In this case a taxpayer needs to first pay 30% of the tax assessed or the tax not in dispute, whichever is higher.

Appeals to the high court; A taxpayer dissatisfied with the decision of the Tax Appeals Tribunal may appeal the decision made to High Court within 30 days after being served with a notice of the decision, apply to High Court to review the decision.

Appeals to the Court of Appeal; A taxpayer dissatisfied with the decision of the High court may, within 30 days after being served a notice of the decision, appeal the decision to the Court of Appeal.

Appeals to the Supreme court; A taxpayer dissatisfied with the decision of the Court of Appeal may appeal the decision to the Supreme Court.

The Objections and Appeals procedure is provided for under the;

- Tax Procedures Code Act 2014;
- East African Community Customs Management Act 2004 (Sections 229 and 230)
- Tax Appeals Tribunal Act Cap 345.s

5. How does an Alternative Dispute Resolution (ADR) work?

A taxpayer dissatisfied with an objection decision may apply to the Commissioner to resolve the dispute using alternative dispute resolution procedures that may be prescribed by the Minister through regulations.

6. When does a Taxpayer appeal to the Tax Appeals Tribunal (TAT) ?

A taxpayer dissatisfied with the decision of the Commissioner General may, appeal the decision to the Tax Appeals Tribunal. The taxpayer intending to lodge an appeal in TAT

shall do so within 30 days after being served with the notice of objection decision.

NB: In this case a taxpayer needs to first pay 30% of the tax assessed or the tax not in dispute, whichever is higher.

7. Why does a Taxpayer appeal to High Court?

A taxpayer dissatisfied with the decision of the Tax Appeals Tribunal may appeal the decision made to High Court within 30 days after being served with a notice of the decision, apply to High Court to review the decision.

An appeal to the High Court may be made on questions of law only and the notice of appeal shall state the question (s) of law that will be raised on the appeal.

8. When do you appeal to the Court of Appeal?

A taxpayer dissatisfied with the decision of the High court may, OBJECTION AND APPEAL 3 within 30 days after being served a notice of the decision, appeal the decision to the Court of Appeal.

The Court of appeal shall inquire and determine the appeal expeditiously and shall declare its findings not later than 60 days from the date of filing the appeal

9. When does the Taxpayer appeal to the Supreme Court?

A taxpayer dissatisfied with the decision of the Court of Appeal may appeal the decision to the Supreme Court.

NB: The Objections and Appeals procedure is provided for under the

- Tax Procedures Code Act 2014;
- East African Community Customs Management Act 2004 (Sections 229 and 230)

10. What is the burden of proof?

The burden of proof is on the tax payer to prove that the assessment is incorrect and for any other tax decision, is on the person objecting to the decision to prove that the

decision should have been made differently